

HOUSE BILL 1998

By Stevens

AN ACT to amend Tennessee Code Annotated, Title 49,
Chapter 6, relative to searches.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-6-4204(e), is amended by adding the following as a new subdivision:

(3) Apply to searches of containers, packages, or other enclosures that are not ordered by a principal, but that are conducted:

(A) Using a stationary metal detector or weapons detection system, or using a handheld device designed to indicate the presence of dangerous weapons, drug paraphernalia, or drugs before any student or visitor is permitted to enter a school building or certain areas on school grounds; or

(B) Pursuant to § 49-6-4207(b).

SECTION 2. Tennessee Code Annotated, Section 49-6-4207, is amended by designating the existing language as subsection (a) and adding the following new subsection:

(b)

(1) If a student, visitor, container, package, or other enclosure used for storage by a student or visitor must pass through a stationary metal detector or weapons detection system, or be screened using a handheld device designed to indicate the presence of dangerous weapons, drug paraphernalia, or drugs, before the student or visitor is permitted to enter a school building or certain areas on school grounds, and, if during the initial screening the metal detector, weapons detection system, or handheld device indicates the potential presence

of dangerous weapons, drug paraphernalia, or drugs, then a secondary search may be conducted of the student, visitor, container, package, or enclosure.

(2) Except as provided in subdivisions (b)(3) and (4), a secondary search conducted of a container, package, or enclosure may be conducted by a:

(A) School resource officer who is acting, for the purpose of the search, as a school official;

(B) School security officer;

(C) School administrator who has completed training pursuant to § 49-6-4212; or

(D) School employee designated by the school principal to conduct a search pursuant to this subsection (b) who has completed training pursuant to § 49-6-4212.

(3) A secondary physical search conducted of a student or an enclosure on the student's person that cannot be removed from the student and searched independently, such as a pocket on clothing being worn by the student at the time of the search, must be conducted pursuant to § 49-6-4205.

(4) A secondary physical search conducted of a visitor or an enclosure on the visitor's person that cannot be removed from the visitor and searched independently, such as a pocket on clothing being worn by the visitor at the time of the search, must be conducted by a:

(A) School resource officer who is acting, for the purpose of the search, as a school official;

(B) School security officer; or

(C) School administrator who has completed training pursuant to § 49-6-4212.

(c) This section does not:

(1) Authorize a search that violates the fourth amendment to the United States Constitution or the Constitution of Tennessee, Article I, § 7; or

(2) Restrict a law enforcement officer from conducting a lawful search on school property.

SECTION 3. Tennessee Code Annotated, Section 49-6-4212(a)(3), is amended by deleting the subdivision and substituting:

(3) A school administrator or school employee designated by a school principal for purposes of § 49-6-4207(b) must complete the orientation and training program developed by the department pursuant to subdivision (a)(1) prior to conducting a search pursuant to § 49-6-4204(a)(2)(C), § 49-6-4205(a)(2)(C), or § 49-6-4207(b).

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.